The National Council Of Ymca'S Of India ... vs The State Of U.P.Through Prin. Secy. ... on 2 February, 2012

Bench: Pradeep Kant, Ritu Raj Awasthi

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Reserved

Writ Petition No. 6750 (M/B) of 2010

National Council of YMCA's of India

versus

State of U.P. and others

For petitioners: Sri N.K.Seth, Senior Advocate,

Sri R.S.Singh, Advocate,

Sri Brijesh Kumar Saxena, Advocate,

Sri Jaspreet Singh, Advocate

For respondents: Sri Raghvendra Singh, Senior Advocate,

Sri O.P.Srivastava, Advocate

Hon'ble Pradeep Kant, J.

Hon'ble Ritu Raj Awasthi, J.

(Delivered by Hon'ble Pradeep Kant, J.) This writ petition with multiple reliefs in reference to the issue of land grabbing seeks quashing of R.S. No. 714 of 2009 (YMCA through S.K. Bajpai v. YMCA through L.J. Bhatti and another) pending before Civil Judge (Senior Division), Lucknow, opposite party no.5 herein and to set aside the judgment and decree dated 22.01.2008 passed in R.S. No. 520 of 2007 (Sahib Deen through Raju alias Anil v. YMCA). It is also prayed that O.P. No.5 be directed to decide the pending application of the petitioner under section 340 Cr.P.C. and their recall application registered as Misc. Case No. 138-C of 2009 (National Council of YMCA v. Sahib Deen and another).

Besides the aforesaid reliefs, the petitioner cited instances of land grabbing particularly by the respondents in collusion with some lawyers and other persons in an organized and designed manner to grab properties situate at prime locations in the city of Lucknow by instituting frivolous suits in the name of fake persons and obtaining a decree to that effect. The petitioner prayed that such instances as mentioned in paragraph 44 onwards of the writ petition should be inquired into and therefore, appropriate direction be given to the State impleaded through the Principal Secretary (Home) and Principal Secretary (Law), the Senior Superintendent of Police, Lucknow, to initiate an independent enquiry in the criminal and fraudulent activities of the private opposite parties including a direction to the District and Sessions Judge, Lucknow, to hold an enquiry in respect of cases mentioned in paragraph 44 of the writ petition which was taken note of by this Court vide order dated 20.07.2010 where learned District Judge, Lucknow was directed to enquire into the aforesaid allegations of land grabbing cited in the writ petition.

The District Judge submitted his report on 23.11.2010 after taking evidence and examining lawyers, officer/officials of the court, Raju alias Anil and many more persons, wherein he did find the allegations made in writ petition to be true and recommended for appropriate action. The extract of the aforesaid interim order is as below:

> "The allegations made in the writ petition are serious, wherein it is also being stated right from paragraph 44 and onwards that this practice has become a modus operandi for certain persons, who according to the petitioners, are opposite parties no. 6, 7 and 8, in connivance with other persons, including the lawyers mentioned in the writ petition, in order to grab the properties, which do not belong to them. Mention of such cases has been made in paragraph 46 of the writ petition.
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> The petition makes a specific averment of the persons, who are associated in the fraudulent transactions, who initiate such fraudulent proceedings to grab the properties.
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> Reliance has been placed upon the case Jhumman Singh and others v. Central Board of Investigation and others, (1995) 3 SCC 420, wherein, in a writ petition filed under Article 32 of the Constitution, the Supreme Court declared the decree as in executable, since it was obtained by manipulation and also on the case of Dalip Singh

v. State of Uttar Pradesh and others, (2010) 2 SCC 114, where the Court took note of new breed of dishonest litigants.

As per the averments made in the writ petition and as urged by the counsel for the petitioners, prima facie, there appears to be a group of persons, which includes the lawyers also, who is involved in filing false and fabricated claims in the name of non-living persons and then getting themselves substituted for grabbing the properties, which do not belong to them and in particular, the property situated at prime locations.

This requires enquiry and investigation and therefore, we entertain the petition.

Let this matter be listed on 16.8.2010.

In the meantime, the learned District Judge, Lucknow shall make an enquiry and submit his report on the allegations made in the writ petition, particularly by taking into consideration the averments made in paragraphs 33 and onwards of the writ petition.

Further, we, as an interim measure, restrain the opposite parties no. 6, 7, and 8 from alienating or transferring the property in question under the impugned decree, in favour of any person and direct that possession of the petitioners over the property in question shall not be disturbed till further orders of the Court."

The subject matter of the writ petition is the property situate at 13, Rana Pratap Marg, Lucknow bearing Municipal No. 29/6, Rana Pratap Marg, Lucknow executed in favour of the petitioner society by means of a sale deed dated 03.08.1962 registered in the Sub-Registrar Office, Lucknow at serial number 3177 on pages 298-308 of Book No.1 Jild 1727 on 31.08.1962 and measuring about 65,716 sq. ft.

By means of R.S. No. 520 of 2007 preferred by one Sri Sahib Deen on 24.07.2007, cancellation of the aforesaid registered sale deed and declaration and permanent injunction was sought. The aforesaid suit was decreed on 22.01.2008 though Sri Sahib Deen died apparently on 17.08.2007 who was then substituted by one Raju alias Anil vide substitution application dated 20.08.2007 who claimed to be the successor of Sri Sahib Deen on being bequeathed the property in question and certain other assets vide his last WILL dated 08.08.2007. Regular Civil Appeal (No. 46 of 2008) against the aforesaid decree was preferred in February, 2008 by the defendant in the aforesaid suit in the Court of District Judge, Lucknow. The alleged General Secretary through whom defendant was impleaded died on 25.05.2008 though before his death he is said to have moved an application seeking withdrawal of his appeal which appeal was finally dismissed on 25.08.2008.

Another suit (No. 714 of 2009) was preferred before O.P. No. 5 by National Council of Young Men's Christian Associations of India and Ceylon through its Secretary Mr. S.K. Bajpai having its Principal Office at 5, Russel Street, Calcutta claiming its right, title and interest over the aforesaid property in

question seeking permanent injunction restraining the petitioner and its agents from selling part of the aforesaid property measuring about 30,128 sq.ft. over which the petitioner was alleged to illegally assert its rights. Raju alias Anil who obtained a decree in respect of the property in question in the aforesaid R.S. No. 520 of 2007 moved impleadment application therein and filed a counter claim against the plaintiff in the aforesaid suit. However, the plaintiff in the aforesaid suit (No. 714 of 2009) has sought withdrawal of the suit which is pending decision of O.P. No.5.

Sri N.K. Seth, learned senior counsel assisted by Sri R.S. Singh, Sri B.K. Saxena and Sri Jaspreet Singh learned counsel for the petitioner submitted that the decree in R.S. No. 520 of 2007 is a nullity since it has been obtained by fraud and such an instance is a glaring example of abuse of process of court. They attempted to demonstrate the legality of the sale deed to reinforce that petitioner enjoyed unimpeachable right, title and interest over the property in question. To put the petitioner's version briefly:-

> 19.03.1875 - One Sri Lachhman Das was the recorded owner of Gata Nos. 204, 206 and 207 situate in mohalla Sutlanganj, Lucknow whose name was also recorded in the settlement of 1862. He sold the aforesaid Gata numbers to one Sri D. Raj Kumar Sarvadhikari.
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> 12.07.1875 - One Sri Ganga Deen was the recorded owner in 1862 of Gata No. 210 who sold his plot to Sri D. Raj Kumar Sarvadhikari by means of registered sale deed dated 12.07.1875.

Thus, Sri D. Raj Kumar Sarvadhikari became the exclusive owner in possession of Gata Nos. 204, 206, 207 and 210 and his name stood mutated in the relevant records by means of order dated 03.11.1875.

25.01.1887 - Sri D. Raj Kumar Sarvadhikari sold the Gata plot numbers 204, 206, 207 and 210 to Sri B. Avinash Chandra Ghosh, who became its exclusive owner.

17.10.1901 - After the death of Sri B. Avinash Chandra Ghosh, his hiers sold the aforesaid plots Gata No. 204, 206, 207 and 210 to one Sri G.R. Macdowell.

24.05.1906 - Sri G.R. Macdowell purchased Gata plot No. 205, 208 and 203 situate in mohalla Sultanganj, Lucknow from the Nazool Department for the City of Lucknow by means of a registered sale deed.

Thus, Sri G.R. Macdowell became the exclusive owner of Gata plots No. 203, 204, 205, 206, 207, 208 and 210.

30.08.1908 - Sri G.R. Macdowell died executing his last WILL in favour of his wife, namely, Smt. Matilda Annie Macdowell.

16.01.1909 - Smt. Matilda Annie Macdowell obtained a probate in respect of her husband's WILL and thus became the exclusive owner in possession of the plots of aforesaid Gata numbers - 203, 204, 205, 206, 207, 208 and 210.

20.06.1917 - Smt. Matilda Annie Macdowell expired executing her last WILL dated 14.04.1914 whereby she bequeathed the property including the aforesaid properties situate in mohalla Sultanganj, Lucknow in favour of her four children, namely, Sri Lennox Macleod Macdowell, Sri George Ronald Macdowell, Smt. Edeth Margaret de Haoxar wife of Major C.F.M. deHoaxar, Smt. Ethel Mable Kempson wife of Sri E.R. Kempson.

14.09.1917 - The executors of the WILL executed by Smt. Matilda Annie Macdowell obtained probate from the Court of Judicial Commissioner, Lucknow and accordingly the title vested in the four children named above. Three of the four children executed their registered power of attorney in favour of their brother Sri Lennox Mac Leod Macdowell.

10.10.1918 - The four hiers of Smt. Matilda Annie Macdowell in furtherance of their probate transferred by way of registered deed (Annexure No.2 to the writ petition), major portion of composite Gata No. 203, 204, 205, 206, 207, 208 and 210 in favour of Raja Sir Ram Pal Singh which details are mentioned in paragraph 7 & 8 read with paragraph 13 of the said sale deed dt. 10.10.1918.

Thus, the remaining area left after execution of the aforesaid sale deed in favour of Raja Sir Ram Pal Singh of the composite Gata numbers situate in mohalla Sultanganj, Lucknow came to the exlusive share of Edeth Margaret deHaoxar.

28.01.1928 - Smt. Edeth Margaret deHaoxar executed her WILL in favour of her husband Major C.F.M. deHaoxar.

21.08.1937 - Smt. Edeth Margaret deHaoxar died.

14.01.1938 - Major C.F.M. deHaoxar obtained a probate of the aforesaid WILL executed by his wife Smt. Edeth Margaret deHaoxar and became exclusive owner in respect of properties bequeathed by his wife.

08.10.1948 - Smt. Phyllis Marquerite Josephine Richardson, widow of Capt. A.J.C. Richardson obtained probate of the last WILL of her father Major C.F.M. deHaoxar dated 07.05.1938 who died on 16.11.1947 from the Court of District Judge, Kumaon Division, Nainital.

Thus, following the logical conclusion- the exclusive ownership and possession of remaining portion of the composite Gata No. 203, 204, 205, 206, 207, 208 and 210 situate in mohalla Sultanganj, Lucknow after the major portion of the plots of aforesaid Gata numbers were sold to Raja Sir Ram Pal Singh (which came to be known as 10, Rana Pratap Marg) came to be vested in Smt. Phyllis Marguerite Josephine Richardson widow of Capt. A.J.C. Richardson and daughter of Major C.F.M. deHaoxar and Smt. Edeth Margaret deHaoxar.

03.08.1962 - Smt. Phyllis Marguerite Josephine Richardson sold the aforesaid remaning portion of the plots in her possession measuring about 65,716 sq.ft. known as 13, Rana Pratap Marg bearing Municipal No. 29/6, Rana Pratap Marg, Lucknow in favour of petitioner society by means of the aforesaid registered sale deed.

However, the plaintiffs in R.S. No. 520 of 2007 obtained the decree in respect of the aforesaid property in question by claiming that Sri Ganga Deen, son of Khushal, grandfather of Sahib Deen (the plaintiff) was the owner of the land falling on Khasra Plot No. 206, 207 and 210 situate at Mohalla Sultanganj, Lucknow now known as 13, Rana Pratap Marg, P.S. Hazratganj, Lucknow. It was pleaded by the plaintiffs that on the death of Ganga Deen (plaintiff's grandfather), Bhagwan Deen (plaintiff's father) succeeded to the property and became the exclusive owner thereof being the sole son of deceased Mata Deen. The plaintiff claimed that after the death of his father in the year 1960; the plaintiff inherited the property. So far as the aforesaid registered sale deed dated 03.08.1962 of the petitioner society is concerned, it was pleaded that the defendant therein, Council of Young Men's Christian Association of India having its Head Office at 5, Russel Street, Kolkata and present address at Rana Pratap Marg, Lucknow impleaded through its General Secretary, Sri Madho Singh procured forged and fictitious sale deed which came to the notice of the plaintiff in the second week of July 2007 after his return from Mumbai when the copy of the sale deed was handed over to the plaintiff and he was told that henceforth he had no concern with the property in question. The plaintiff claimed that it provided the property in question to the petitioner society as licensee on 20.04.1961 which was misused by the petitioner society to frivolously assert its own rights over the property in question.

Refuting the aforesaid version of the plaintiff in R.S. No. 520 of 2007, Sri B.K.Saxena argued that the plaintiff claimed declaration over land in respect of Khasra No. 206, 207 and 210 though copy of settlement of 1862 produced by the plaintiff himself, showed one Sri Lachhman Das, the recorded owner in respect of Khasra No. 206 and 207. The record of the proceedings in the aforesaid suit does not show any document or title relating to Khasra Plot No. 206 and 207 yet the O.P. No. 5 decreed the suit in favour of the plaintiff.

He further argued that the sale deed dated 03.08.1962 executed by Smt. Phyllis Marguerite Josephine Richardson in favour of the Council of Young Men's Christian Associations of India and Ceylon was prayed to be cancelled without impleading either the seller or the purchaser as a party in the aforesaid suit. The defendant in the aforesaid suit was the Council of Young Men's Christian Association of India but no document or evidence showing it to be a society registered under the Societies Registration Act was produced nor filed despite the order dated 08.01.2008 by O.P. No.5. Consequently, such a suit was not maintainable in law in view of Section 6 of the Societies Registration Act. The Memorandum of Association produced by the defendant in the aforesaid suit relates to a Society, namely, the Young Men's Christian Association having its registered office at Rana Pratap Marg, Lucknow. The Society so registered as shown in the memorandum according to the learned counsel for the petitioner is neither the Defendant in the case nor purchaser in the aforesaid registered sale deed dated 03.08.1962.

It was hence alleged by the petitioner that fraud is apparent on the face of the proceedings. The order sheet in the aforesaid suit reveals that two orders dated 08.01.2008 on paper no. A-2/4 and A-2/5 in the record of the aforesaid suit shows two different sets of orders having no connection with each other. Even the certified copy of the memorandum of association produced by the defendant in the aforesaid suit on 14.01.2008 was tampered, in as much as, after obtaining a certified copy, the name of Sri Madhu Singh, General Secretary at paragraph 4, column 4 and paragraph 6, column 4 was interpolated to show the name as Madho Singh who never served as the General Secretary of the petitioner society.

Sri Raghvendra Singh, learned senior counsel assisted by Sri O.P. Srivastava raised preliminary objection as regards maintainability of the writ petition and prayed that his objection be resolved first; though he argued the instant matter on merits to establish that the petitioners do not have any lawful right, title or interest over land in question and neither are they entitled to raise any plea against the decree nor do they possess any subsisting right to challenge the decree.

Briefly, he questions the writ petition on the grounds of (1) misjoinder of causes of action and multiple reliefs sought in respect thereof; (2) disputed questions of facts that cannot be adjudicated upon in writ jurisdiction; (3) the petitioners cannot invoke the supervisory jurisdiction of this Court under Article 226 or 227 having moved an application under Order IX, Rule 13 C.P.C. for setting aside ex parte decree; (4) Multiple reliefs have been claimed of which some are cognizable only by learned single judge of this Court; (5) the petitioners being strangers to the property cannot come to this Court invoking its extra-ordinary jurisdiction; (6) the petitioners failed to produce any document to prove their title over the property in question; (7) the registration on which the petitioner support their case is a new registration at Delhi which is not the same society who has transferred the property earlier in favour of plaintiff's grandfather and therefore, identity of the society with the present society of the petitioners cannot be established; (8) in the sale deed executed in favour of Raja Ram Pal Singh, the entire property was sold to Raja Ram Pal Singh, therefore, the petitioners cannot lay any claim over the property in question by virtue of registered sale deed said to have been executed on 03.08.1962 by Mrs. Phyllis Marguerite Josephine in favour of the petitioner society, as there was no property left, which could have been sold by her.

Learned counsel for the petitioner Sri B.K. Saxena argued in response that the objections raised are wholly untenable. He categorically stated that evidently from the recitals contained in the registered sale deed dated 10.10.1918 (Annexure 2 to the writ petition), it clearly shows that Smt. Phyllis Marguerite Josphine, being legal hier of the vendors (legal heirs and representatives of Sri G.R. Macdowell, namely L.M. Macdowell) of 1918 sale deed succeeded to the remaining property of the aforesaid vendors and obtained a probate dated 10.03.1948 from the District Judge, Kumaun Division, Nainital in respect of the WILL executed on 07.05.1938 by her father Major Charles Frederick Maxmillon DeHaoxar. The property which is the subject matter of the instant petition and the registered sale deed of 1962, earlier 13, Clyde Road, Lucknow was part of the Estate of Major C.F.M. deHaoxar (mentioned in column of immovable property as Property No.2) in respect of which the aforesaid probate was granted. Also, this property finds mention at serial no. 13 of the aforesaid WILL dated 07.03.1938 on the basis of which the aforesaid probate was granted wherein the western boundary has been shown as the property of Raja Ram Pal Singh, 12, Clyde Road,

Lucknow which is today known as 12, Rana Pratap Marg, Lucknow where office of U.P. Cooperative Cane Union Federation still stands.

Sri Raghvendra Singh, counsel for the respondents, though started his arguments by saying that he is raising a preliminary objection about the maintainability of the writ petition, but in fact he has argued the entire matter on merits and canvassed before the Court that the petitioner has no right, title or interest over the property in question and the suit has been rightly decreed. He with all vehemence tried to impress upon the Court that the petitioner society is a total stranger to the property and that there is no infirmity in the decree.

Submission of the learned counsel for the petitioner is that if the entire property had been sold to Raja Ram Pal Singh including the present property, there was no occasion to describe the western boundary of the property in question as the property of Raja Ram Pal Singh. Further, the aforesaid property is described therein as "Messuages' meaning dwelling houses and offices in the adjoining land appropriated to the household.

The description of the western boundary of the property in question as such apparently establishes that this is the same property which finds mention in the registered sale deed dated 03.08.1962 and described specifically in the schedule appended thereto over which the petitioner has lawful title by virtue of the aforesaid sale deed executed in its favour and its long undisturbed peaceful possession.

So far as the status of the petitioner is concerned as regards the purchaser named in the aforesaid sale deed dated 03.08.1962 i.e. the National Council of Youngmen Christian Association of India and Ceylon; Sri B.K. Saxena brought before us the Memorandum of Association of the petitioner society and its formation since the year 1881 to 2004. It was canvassed that right from the 8th Convention at Calcutta in the year 1907, amendments have been carried out in the name of the petitioner society, as for example, when Ceylon joined the union it became National Council of Young Men's Christian Association of India and Ceylon, then at the 10th Convention, it became National Union of Young Men's Christian Association of India, Burma and Ceylon, thereafter at the 16th Triennial Convention in 1951 it became Council of Young Men's Christian Association of India, Pakistan, Burma and Ceylon and so on until 19th Convention in the year 1961 it became National Council of Young Men's Christian Association of India after separation of Ceylon to form their own national council.

It was in 1964 that the Head-quarter of the Society was shifted to New Delhi pursuant to the resolution passed at the Business session of the National Convention of National Council of Young Men Christian Association held on 31.12.1961 and thereafter the Conventions of the National Council have continued to be held at various places with its headquarter at Delhi.

It was asserted that Memorandum of Association of the petitioner society would show its name as the National Council of Youngmen's Christian Association of India with similar endorsement on the first page of the aforesaid Memorandum; it being popularly known as YMCA which finds place in various dictionaries including that of Chambers' Dictionary to mean Young Men's Christian Association. Further, it was pointed out that during the time the aforesaid changes were carried out

in the name of the society, the registration number as entered in the certificate of registration of Societies of the petitioner society i.e. S/2035 of 1911-1912 appeared in all the certificates so issued to that effect. Accordingly, when the head-quarter of the society was shifted to Delhi it was registered on 17.07.1967 under section 3 of the Societies Registration Act as applicable in Delhi.

Clarifying the nexus between the petitioner society and the entity with whom the aforesaid sale deed dated 03.08.1962 was executed to be the same, Sri R.S. Singh placed on record, the Certificate of change of name from the Council of Y.M.C.A's of India and Ceylon to the National Council of Young Men' Christian Association, dated 19.09.1962 issued by the Registrar of Firms and Societies, Calcutta, West Bengal and obtained from the Registrar of Firm and Societies at New Delhi under the Right to Information Act containing the same registration number i.e. S/2035 of 1911-1912 as was given during registration of the petitioner society at inception. Even otherwise it was argued that Section 11 of the West Bengal Societies Registration Act, 1961 vested the power with the State Government to take action against any Society registered under the name which in the opinion of the State Government is identical with, or resembled to the name of any other Society having been previously registered or continues to exist under the Act there. But no action was taken by the Government of West Bengal under section 11 because of the shifting of head-quarter of the petitioner society from Calcutta to New Delhi.

An additional submission to buttress the lawful title over the property in question was made before us by Sri N.K. Seth, learned senior counsel who stated that it is not in dispute that the petitioner society has been in possession of the property in question right from the time the aforesaid sale deed dated 3.08.1962 was executed. This possession he claims anyway brings a legal right of ownership unless dispossessed by the true owner of the property he argued relying upon an Apex Court decision in Nair Service Society Ltd. v. K.C. Alexander, AIR 1968 SC 1165. Elaborating further he stated that the possession of MacDowell, their family members and successors would be presumed over the property including the suit property i.e. plot no. 206, 207 and 210 of mohalla Sultanganj, Lucknow to be continuing from October, 1901 till date. Placing reliance on Ambika Prasad Thakur v. Ram Ekbal Rai, AIR 1966 SC 605 wherein the Apex Court held that there is otherwise backward and forward presumption of things, he submitted that the possession over the suit property of the seller of the aforesaid registered sale deed of 1962 shall be deemed to be backward and that the possession of the purchaser (Council of Young Men's Christian Association of India and Ceylon) over the property in question to be continuing forward till date. Such a title could not have been displaced or set aside by the decree of O.P. No.5 without the seller of the aforesaid sale deed of 1962 being impleaded therein, it being a necessary party to the suit. Thus he maintained that the impugned decree in R.S. No. 520 of 2007 being patently illegal deserves to be rightly set aside.

As regards, the objection of the Respondents on the ground of alternative remedy, it has been stated that the whole proceedings in R.S. No. 520 of 2007 were sham as neither the purchaser nor the seller were impleaded therein and the suit was decreed fraudulently. The fact that O.P. No. 5 proceeded to decree the suit even though the plaintiff therein did not have any title to plots of Gata No. 206, 207, 210 and even mentioned Gata No. 200 (which was not even the subject matter of the suit) as is apparent from the record itself further shows that the proceedings before O.P. No. 5 were sham and fraud. Furthermore, it was submitted that the limitation period for cancellation of sale

deed is three years according to the Limitation Act - a fact which was overlooked by O.P. No. 5 while cancelling a registered sale deed dated 03.08.1962 nearly after thirty-five years in obvious contravention of the statute.

The decision of the Apex Court in Whirlpool Corporation v. Registrar of Trade Mark, AIR 1999 SC 22 was cited before us to substantiate the plea of the petitioner that High Court exercising jurisdiction under Article 226 has a discretion to entertain or not to entertain a writ petition. It was thus submitted that alternative remedy does not operate as a bar to exercise jurisdiction under Article 226. Elucidating further, it was stated that this Court already took judicial notice of the incidents of land grabbing reported in the writ petition and directed enquiry by the District Judge, Lucknow vide aforesaid order dated 20.07.2010 who has even confirmed the averments of the petitioner to be true vide his aforesaid report dated 23.11.2010 and has recommended for taking proper action by the administrative authorities and the Bar Council.

The respondents on the other hand disputed that Sri G.R. MacDowell could be considered to possess any right, title or interest in the property in question because neither late Sri Ganga Deen nor Sri Lachhman Das sold their aforesaid plots to Sri D. Raj Kumar Sarvadhikari and therefore no question arises that the property was ever sold to Sri B. Avinash Chandra Ghosh or bought by Sri G.R. MacDowell to deduce the claim of the petitioner society.

We have heard the parties at length and perused the report of the learned District Judge, Lucknow and the record of both the suits.

Both the parties have put forward their claim about the ownership of the property wherein the petitioner has prayed for setting aside the decree holding it to be fraudulent and an abuse of the process of the Court, the private respondents have tried to defend the decree. In light of the aforesaid facts and arguments, we proceed to consider the issues involved.

The first objection of the O.P.No. 6, is on the ground of misjoinder of causes of action and multiple reliefs said to have been claimed by the petitioner. Essentially, this objection overlooks the fact that cause of action in the instant petition is only one - i.e. the suit regarding the property in question being fraudulently decreed in favour of O.P. No. 6 in a designed and conspicuous manner questioning the propriety and sanctity of courts and judicial proceedings being used as an instrument to fortify fraudulent claims to grab properties situate at prime locations. The reliefs which have been claimed are in respect of this cause, to protect itself and protect the sanctity of courts to dispense time on worthwhile disputes and not on fraudulent suits preferred with private vendetta or culpable intention. The objection, therefore being misconceived deserves to be rejected.

On the second ground that the instant petition raises disputed questions of fact which ought not be adjudicated under writ jurisdiction; we deem it pertinent to mention that it is only a matter of practice that this Court while exercising writ jurisdiction under Article 226 ordinarily refrains itself from adjudicating questions of fact. However, this practice cannot be deemed to bar the power of High Court vested otherwise by the Constitution to determine questions of fact in enforcing the fundamental or legal rights of the person invoking writ jurisdiction. The Supreme Court has

succinctly clarified this facet of Article 226 in Babubhai Muljibhai Patel v. Nandlal Khodidas Barot, (1974) 2 SCC 706, at page 716. The relevant observation is as below:

> "The High Court is not deprived of its jurisdiction to entertain a petition under Article 226 merely because in considering the petitioner's right of relief, questions of fact may fall to be determined. In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law. Exercise of the jurisdiction is no doubt discretionary, but the discretion must be exercised on sound judicial principles. When the petition raises complex questions of fact, which may for their determination require oral evidence to be taken, and on that account the High Court is of the view that the dispute should not appropriately be tried in a writ petition, the High Court may decline to try a petition (see Gunwant Kaur v. Bhatinda Municipality1). If, however, on consideration of the nature of the controversy, the High Court decides, as in the present case, that it should go into a disputed question of fact and the discretion exercised by the High Court appears to be sound and in conformity with judicial principles, this Court would not interfere in appeal with the order made by the High Court in this respect."

(emphasis supplied) In another situation in National Thermal Power Corporation Limited v. Mahesh Dutta, (2009) 8 SCC 339, it was disputed whether possession of the acquired land had in fact been taken which was adjudicated upon in writ jurisdiction by this Court sitting at Allahabad. The Supreme Court considering the legality of such adjudication approved the High Court's decision of adjudicating the question of fact. The relevant observation at page 354 of the aforesaid report is as follows:

> "38. We may now consider the question as to whether the issue as to whether possession of the acquired land had actually been taken over or not being a disputed question of fact could not have gone into by the High Court.
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> 39. It is not a case where oral evidence was required to be taken. There is no law that the High Court is denied or debarred from entering into a disputed question of fact. The issue will have to be determined keeping in view the fact situation obtaining in each case. If a disputed question can be determined on the basis of the documents and/or affidavit, the High Court may not ordinarily refuse to do so. In a given case, it may also examine witnesses."

(emphasis supplied) Thus, it being discretionary to determine questions of fact while considering the petitioner's right of relief, it would not be trite to reject the instant petition on this ground which seeks quashing of fraudulent proceedings culminating into decree obtained by fraud. Otherwise also, the learned District Judge, Lucknow having verified the veracity of the allegations made in the writ petition which apparently brings to light an organized racket involved in property-grabbing in the city of Lucknow in collusion with some lawyers and other persons to grab properties and lands situated at prime locations in the city. With the facts and circumstances of this case raising grave issue of abuse of process of court, we are not inclined to dismiss the petition on the ground that

questions of fact may fall to be determined while entertaining the instant petition.

The third ground of the respondents that petition be dismissed on the ground of alternative remedy since the petitioner has already moved an application under O.IX, r.13 C.P.C. and section 340 Cr.P.C. is accordingly not granted consistent with decision of Division Bench of this Court in W.P. No. 5627 (MB) of 2003, namely, M/s. The Upper India Couper Paper Mills Co. Ltd., judgment/order dated 06.04.2004; it being discretion of this Court to dismiss a petition on the ground of alternative remedy. This Court in M/s. The Upper India Couper Mills Co. Ltd. (supra) dealing with the issue of land grabbing categorically outlined that where 'clinching evidence is on record showing no title or even semblance of title' of the party who preferred frivolous action ousting the lawful owner of the property, "the aggrieved party cannot be left for litigating its cause by following the course which would take years together, permitting the forceful occupant to enjoy the possession of the house" and thus in such a situation there would be 'no impediment in doing substantial justice'.

The fourth ground on which the petition is resisted also does not appeal to us. The argument of learned senior counsel for the respondents that certain reliefs are cognizable by learned single judge of this Court under the Allahabad High Court Rules, 1952 cannot be deemed to bar the exercise of jurisdiction by a Division Bench in entertaining such a petition. If the Division Bench has the jurisdiction to hear the petition, it would not be a ground to dismiss such a writ petition on the ground that certain reliefs claimed are cognizable by learned single judge of this Court.

The O.P. No.6 contesting the right, title and interest of the petitioner society in the property in question claimed the petitioner society to be stranger to the suit property therein in R.S. No. 520 of 2007 and therefore writ petition at their instance was argued to be not maintainable. Connected grounds that the petitioner failed to produce any relevant document to prove its title and that the petitioner is a different society having its registration at New Delhi and further that after the sale deed was executed in favour of Raja Ram Pal Singh, nothing remained for the petitioner society to claim the property since the entire property was sold to Raja Ram Pal Singh have all been raised to buttress their submission that the instant writ petition is not maintainable.

We are though satisfied that the petitioner is the owner in possession of the property in suit, by virtue of a registered sale-deed, executed in favour of the same society, but in the given facts and circumstances where grievance is of abuse of process of court, we are not inclined to enter into the aforesaid question in detail when indisputably, the petitioner has been in possession of the aforesaid property in question for nearly thirty-five years and continues to be in constant possession of the said property. We rather proceed to examine on the basis of record in the writ petition including the record of R.S. No. 520 of 2007, if the proceedings and decree in the aforesaid suit (No. 520 of 2007) suffer from the vice of abuse of process of court.

But before proceeding to do so, hearing O.P. No.6 at length and perusing the documents brought on record by O.P. No.6, we are constrained to say that O.P. No.6 vying for the property in question disputed facts which otherwise stood settled. For example, contending that petitioner society is a stranger to the suit property and then proceeding to dispute its identity on the basis of registration while at the same time admitting the age-old possession of the property in question to be with the

petitioner society or arguing that Sri Sahib Deen appointed the petitioner society as licensee for the property at the same time only leads us to draw the conclusion that impetuous defence has been setup with contradictory versions in the counter affidavits of O.P. No.6 and the said plaint. The contention raised about the status of the petitioner society concerning the property in question does not appeal to us in light of the documents on record particularly, the Memorandum of Association, the Rules and Regulations, the record obtained from the Registrar of Firms and Societies, Delhi containing the aforesaid certificate dated 19.09.1962 of change of name of the petitioner society to the present name and related record which formed the basis of registration of the petitioner society at Delhi. The contention therefore is rejected.

On perusal of the aforesaid plaint in R.S. No. 520 of 2007 and submissions advanced by the parties before us, it indisputably emerges that Sri Ganga Deen was the recorded owner of land Gata No. 210 and Sri Lachhman Das that of Gata No. 206 and 207. The petitioner has been in possession of the suit property for nearly thirty-five years and has subscribed to electricity and telephone connections at the suit premises. Yet it was pleaded in paragraphs 1 and 5 of the plaint in R.S. No. 520 of 2007 that Sri Ganga Deen was the exclusive owner of Khasra Plot No. 206, 207 and 210 measuring about 65,716 sq.ft. which suit was decreed by O.P. No. 5 and not only this but the trial court proceeded to bring into picture another plot Gata No. 200 with dimensions of plot Gata No. 210 while decreeing the suit.

The record of the aforesaid suit shows that the documents relied on by Sri Sahib Deen and later on by O.P. No.6 to buttress their claim itself showed Sri Lachhman Das was the recorded owner of land of Gata No. 204, 206, 207. We could not find any document on record in the aforesaid suit to draw nexus between plots of Gata No. 206 and 207 either with Sri Sahib Deen or O.P. No.6. though the plaintiff did not plead any connection or relation with Sri Lachhman Das.

Though, in defence it has been canvassed before us by O.P. No. 6 that Sri Lachhman Das never sold the aforesaid plots to Sri B. Raj Kumar Sarvadhikari. The sale deed of Sri B. Raj Kumar Sarvadhikari is said to have been obtained by fraud by an "impostor' and therefore claimed to be a nullity. It was argued that the sale deed dated 09.03.1875 executed by Ram Das son of Sri Lachhman Das was concealed by the petitioner society though there has been no mention about the parties of the facts as to between whom the said sale deed was executed, whether it was registered and neither was the sale deed ever referred to or brought on record. It would not be out of place to mention here that O.P. No. 6 claims to be the successor of Sri Ganga Deen through Sri Sahib Deen though no nexus with Sri Lachhman Das was canvassed. Thus, his right, title or interest, if any, ought to be confined to the right, title or interest of Sri Ganga Deen and not Sri Lachhman Das. In the absence of any legal successor of Sri Lachhman Das before this Court; we fail to follow O.P. No.6's assertions regarding the property of Sri Lachhman Das.

Moreover, in the plaint in the impugned suit proceedings (No. 520 of 2007), Sri Bhagwan Deen who is said to be the plaintiff's father is said to succeed plaintiff's grandfather (Sri Ganga Deen) being the only son of one Sri Mata Deen which pleading it seems was blindly followed by O.P. No.5. We fail to follow the anomaly, viz. the thumb impression of Sri Sahib Deen on the plaint and that on the said WILL dated 08.08.2007 on the basis of which Raju alias Anil claimed his title, was examined by

forensic consultant who reported that impressions on the plaint and the WILL to be of different persons and not of one person. The report has been brought on record by the petitioner. Several other instances leading an inference of malicious and vexatious claim by the opposite parties are deducible from a bare perusal of the plaint which appear to have been overlooked by O.P. No. 5.

It ought to be mentioned that when a claim of ownership is brought before a court, the burden of proving ownership in view of Section 110 of the Evidence Act, 1872 lies on the claimant being incumbent upon the court concerned to scrutinize the truthfulness of the claim, the limitation prescribed during the time of admission of the plaint. The Civil Procedure Code, 1908 has been enacted to be scrupulously followed so as to prevent miscarriage of justice.

On perusing the record of the aforesaid suit, we could only find different version of facts in the plaint itself and forged documents on record. The manner in which the aforesaid suit was filed, proceeded with and decreed only leads to the inference of fraud, in as much as, the suit was filed on 24.07.2007 by a person claiming himself to be Sri Sahib Deen. So as to fructify the purpose of the suit, oral intimation was given to the trial court of the death of Sri Sahib Deen on 17.08.2007 and substitution application was moved by Sri Raju alias Anil claiming himself to be the successor of Sri Sahib Deen on the basis of a WILL dated 08.08.2007. No death certificate of Sri Sahib Deen was placed on record and neither an enquiry was made into the veracity of claim of Sri Raju alias Anil. The age old possession of nearly thirty-five years of the petitioner over the property in question being not disputed; yet the trial court proceeded to decree the suit on 22.01.2008 i.e. within five months of the commencement of suit proceedings barely on the testimony of aforesaid Sri Madho Singh who claimed to be witness to the impugned sale deed and General Secretary of the society and pressed no objection on suit being decreed in favour of Sri Raju alias Anil on payment of some money to him.

Proceeding on such novel testimony, the trial judge ought to have remembered the basic principle of civil law that a witness to a sale deed cannot testify the title of the vendor or vendee and neither can he offer such a novel contingent "no objection' stamp in favour of the vendor or vendee to testify their title over a suit property. In such circumstances, we are convinced that the impugned decree is only a collusive decree which cannot stand the force of law. We take serious notice of the manner in which the proceedings in the aforesaid suit have been held by O.P. No.5 in flagrant violation of judicial propriety and conscience.

R.S. No. 714 of 2009 also appears to be frivolous instituted in a designed manner. Though withdrawal application has been moved therein by the plaintiff; title has been claimed over the property in question on the basis of peaceful possession by virtue of assignment deed dated 03.08.1962. Neither the said assignment deed has been placed on record in the suit proceedings nor it has been mentioned anywhere in the plaint as to who executed the said assignment deed in plaintiff's favour. Moreover, it being undisputed fact admitted to O.P. No.6 also (who moved impleadment the aforesaid suit as well and laid a counter claim against the plaintiff therein) that the petitioner society has been in constant possession of the property in question for nearly thirty-five years and even continues to be in possession, the claim of the plaintiff therein is on the face of it false and baseless. The proceedings therefore, we are convinced are frivolous which are liable to be

quashed.

This, we find no merit in the objections raised, which are accordingly dismissed.

Addressing the facts and situations of the instant matter - the manner in which the suit proceedings have been proceeded with and decreed, we are shocked to see that advocates have induldged themselves in pursuing such frivolous claims. The Supreme Court taking note of such proceedings purely an abuse of process of court in T. Arivandandam v. T.V. Satyapal, AIR 1977 SC 2421 observed:

> "5. We have not the slightest hesitation in condemning the petitioner for the gross abuse of the process of the court repeatedly and unrepetently resorted to. From the statement of the facts found in the judgment of the High Court, it is perfectly plain that the suit now pending before the First Munsif's Court Bangalore, is a flagrant misuse of the mercies of the law in receiving plaints. The learned Munsif must remember that if on a meaningful - not formal - reading of the plaint it is manifestly vexatious, and meritless, in the sense of not disclosing a clear right to sue, he should exercise his power under O.VII R. 11, C.P.C. taking care to see that the ground mentioned therein is fulfilled. And, if clear drafting has created the illusion of a cause of action, nip it in the bud at the first hearing by examining the party searchingly under O. X, C.P.C. An activist Judge is the answer to irresponsible law suits. The trial Courts would insist imperatively on examining the party at the first hearing so that bogus litigation can be shot down at the earliest stage. The Indian Penal Code is also resourceful enough to meet such men, (Ch. XI) and must be triggered against them.
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> 7.. . . We more than regret the circumstance that the party concerned has been able to prevail upon one lawyer or the other to present to the court a case which was disingenuous or worse. It may be a valuable contribution to the cause of justice if counsel screen wholly fraudulent and frivolous litigation refusing to be beguiled by dubious clients. And remembering that an advocate is an officer of justice he owes it to society not to collaborate in shady actions."

The glaring facts which are apparent on the face of record and establish a case of fraud and abuse of the process of the court, can be briefly summed up as under:

> (i)The suit was filed by Sahib Deen, whose existence was never established.
>
> (ii)Sri Ramesh Kumar Srivastava, Munsarim in the court of O.P.No. 5 stated before the District Judge that he did not raise any objection regarding limitation of the suit in his report on the date R.S.No. 520 of 2007 was filed; since the documents filed alongwith the plaint were photo-copies of the registered document. This is hardly an explanation, for not reporting regarding limitation, on the plaint.

(iii)The trial court also did not frame any issue on limitation, nor entered into the question of limitation of filing the suit though it was filed after 35 years from the date of execution of the sale-deed.

(iv)O.P.No. 5 Sri Amar Jeet Verma, who was the presiding officer of the court, was examined by the District Judge in the enquiry, where he stated that he had entertained Regular Suit No. 520 of 2007 on the basis of the report submitted by the Munsarim and directed its registration. He stated that on the basis of the evidence adduced by the parties, he had decided the case on merits. This statement of fact made by the presiding officer of the trial court is obviously contrary to the stand taken by the Munsarim (Ramesh Kumar Srivastava) and the facts available on record.

(v)The report of the District Judge and the record of lower court reveals that the suit was filed on 24.7.2007 through Sri Ravindra Kumar Yadav, Advocate on behalf of Sahib Deen (age not mentioned), adult son of late Sri Bhagwan Deen, purportedly resident of 13, Rana Pratap Marg, Sultanganj, Hazratganj, Lucknow against the defendant for cancellation of sale-deed dated 3.8.1962 registered on 3.8.1962. The valuation of the suit was shown to be Rs.40,000/-. 4.10.2007 was the date fixed in the case for written statement/issues, but written statement was filed on 7.8.2007, nearly two months before the date fixed for filing written statement, by a person claiming himself to be Madho Singh, through counsel Sri A.H.Khan, Advocate, on behalf of the defendant.

(vi)There existed no Vakalatnama on behalf of defendant Young Men's Christian Association.

(vii)One Raju alias Anil, son of Sri Shiv Bux moved a substitution application through the same counsel Sri Ravindra Kumar Yadav, claiming that the plaintiff had died on 16.8.2007, but the defendant had no objection and the said application was allowed the same day.

(viii)On 11.10.2007, issues were framed and affidavit of substituted plaintiff Raju and that of his witness Raj Kumar were filed on 19.11.2007 and the cross-examination of both of them was also completed the very same day.

(ix)The person claiming himself to be Madho Singh, aged 70 years, also filed his affidavit through his Advocate Sri Akbal Hasan Khan on 7.12.2007 on behalf of the defendant, admitting the case of the plaintiff. The case was decreed on 22.1.2008. Further observation is as follows:

"The counsel for "YMCA through Ex-General Secretary Madho Singh" filed a Regular Civil Appeal in the court of District Judge on 20.02.2008. Copy of memo of appeal was received by the counsel Sri R.K.Yadav on behalf of respondent on the very same day. The appeal was admitted on 05-03-2008 and transferred to the court of Addl.

District Judge, Court No. 14, Lucknow. On 26.05.2008 the appellate court was informed that appellant had died. Lastly on 25.08.2008 the appeal was dismissed."

(x)During the pendency of the suit, it was said that Sri Sahib Deen died and in his place, private respondent Raju alias Anil was substituted on the basis of a registered Will dated 8.8.2007, said to have been executed by Sahib Deen. The substitution application was filed on 20.8.2007.

(xi)The description of Sahib Deen in the plaint has been shown as son of Bhagwan Deen, grandson of Ganga Deen; meaning thereby that Bhagwan Deen was the son of Ganga Deen, but at the same time he has also been shown as the son of Mata Deen, which is unexplainable.

(xii)Only plot no. 210 belonged to Ganga Deen; the rest of the plots no. 204, 206 and 207 originally belonged to Lachhman Das, but the respondents did not establish any right, title or interest over the said plots, nor claimed to have been conveyed through Lachhman Das and, therefore, the suit in regard to the aforesaid plots was neither maintainable nor could have been decreed, but was decreed. The only claim which could have been considered by the trial court, was with respect to plot no. 210, which belonged to Ganga Deen, from which the respondents claim their title.

(xiii)Plot no. 200 has been mentioned in the decree, but without disclosing to whom it belonged and how the plaintiff got it, nor it finds mention in the plaint.

(xiv)Though it was a case of cancellation of sale-deed, but neither the vendor (seller) nor the vendee (purchaser) were impleaded as party to the suit, the seller being Smt. Phyllis Marguerite Josephine Richardson and the purchaser being the Council of Young Men's Christian Association of India.

(xv)A bare perusal of the averments made in the plaint shows that one Madhu Singh has been named as Madho Singh, whereas it is the specific case of the plaintiff that Madho Singh was never the General Secretary of Young Men's Christian Association. Thus, in fact the Association was not at all impleaded through its General Secretary but it was some third person who was brought in the name of Madho Singh and not Madhu Singh, who was the General Secretary of the Association.

(xvi)It is also unexplainable and against all legal norms and comprehensions that alleged Madho Singh, in his written statement as well as in the affidavit filed by him, admitted the claim of the plaintiff and stated that he has received Rs. Two lacs as damages and that he has no objection in case the sale deed is cancelled and he shall vacate the premises within one month. The trial court overlooked the fact that the documents on record reveal that it was one Madhu Singh, who was the General Secretary of YMCA and not Madho Singh, regarding whose name the interpolation was made.

(xvii)The District Judge, in his report dated 23.11.2010 has taken notice of various other cases including Regular Suit No. 520 of 2007 and after giving a detailed report, has made the following observations:

"In view of the above there is ample material to infer that counsel Sri Ravindra Kumar Yadav, Advocae, Kunwar Gajraj Singh, Advocate, Sri Akbal Hasan Khan, Advocate, Sri Ram Suresh Singh Chauhan, Advocate, Sri R.C.Soni, Advocate, Sri Ranvir Singh, Advocate are involved in cases relating to properties and land which belonged to various organizations with persons by setting up fictitious persons in their name with the object of appropriating these valuable properties by executing fictitious deeds. It is possible that there may be some involvement of officers and officials of the courts trying such cases.

It is possible to consider appropriate measures to be taken against all the persons, who have been found prima facie hand-in- gloves with persons involved in the abuse of judicial process for misappropriation of valuable property of the city at prime localities and proper action may be taken by the concerned administrative authority and the Bar Council, as the case may be.

It may be relevant to mention that Sri N.K.Seth, Advocate, learned Senior counsel for the petitioner in the present case intervened during the hearing of Writ Petition No. 9925 of 2010 Prashant Singh Gaur Versus State of U.P and others on 05.10.2010, before the Division Bench comprising Hon'ble Uma Nath Singh, J and Hon'ble V.K.Dixit, J and submitted some documents in order to show as to how properties grabbers-wings of the criminal elements of the District Bar have captured a huge prime property in the City of Lucknow. The names of some of these lawyers were forwarded to the Hon'ble Court n the report sought in Writ Petition No. 9925 of 2010 (Supra) wherein the Hon'ble Court has directed the CBI and IB to investigate the allegations made against them, hence the investigation is in progress in these cases also."

(xviii)The trial court relied upon the said statement and decreed the suit, which is unconscionable. The trial court did not enter into the question whether, there is any admissible evidence to prove the plaintiff's case.

(xix)It may be a coincidence that Sahib Deen, who filed the suit, died during pendency of the suit which was decreed within a short span of five months and Madho Singh, who filed the appeal against the judgment and decree, also died during the pendency of appeal, after moving the application for withdrawal of the appeal but the matter requires enquiry as to whether Sahib Deen and Madho Singh were actually genuine persons or not; or they were impleaded only to benefit the ultimate beneficiary, the private respondent no. 6.

(xx)The theory set up in the plaint that the plaintiff could know only in 2007 about the property being illegally occupied by the society and he filed the suit immediately, on the face of it did not explain the time lag, from the date when the sale deed was executed till the suit was filed, which was a long span of over 35 years.

The aforesaid facts find mention in the lower court record and stands corroborated by the report of the District Judge dated 23.11.2010.

The sequence of events aforesaid reveals that the plaintiff filed a designed suit impleading unrelated parties to the property as defendants who colluded with each other. It also requires enquiry, whether any Sahib Deen ever existed and likewise, there was any Madho Singh, or they were fake names, as both of them died during the proceedings of suit and appeal, leaving only the substituted plaintiff, to reap the fruits of the decree. The identity of Sahib Deen was in extreme doubt nor there was anything on record to establish their connection/legal right over the property in question.

Manifestly, the proceedings in suit (R.S. No. 520 of 2007) were sham, fraudulent and the decree obtained by fraud therefore is non est in law and clear abuse of the process of Court; so also is the case with the aforesaid R.S. No. 714 of 2009. Courts cannot be allowed to be used as an instrument to pursue such vociferous frivolous actions. We make it clear that such persons who pursue inherently frivolous actions must remind themselves of the scourge of law.

Filing a suit in the name of a person (Sahib Deen) whose identity and even existence was never established, impleading defendant society, through a person, who was never its General Secretary, interpolating the name of Madhu Singh into Madho Singh, not impleading the right society as defendant, and many other factors, which have been noted above, not only is the abuse of the process of the Court, but may constitute criminal offences. Considering the instant petition in light of the material on record which prima facie makes out a case for enquiry by the Central Bureau of Investigation (CBI), we deem it pertinent to direct the CBI to conduct preliminary enquiry.

In the result, we quash R.S. No. 520 of 2007, namely, Sahib Deen through Raju alias Anil v. YMCA and set aside the decree dated 22.01.2008 passed therein and also quash R.S. No. 714 of 2009, namely, YMCA through S.K. Bajpai v. YMCA through L.J. Bhatti and another pending before O.P. No.5. Since we have set aside the aforesaid decree dated 22.01.2008 and quashed the aforesaid proceedings of both the suits, the application under O.IX, r.13 becomes infructuous and thus no orders are needed to be passed in this respect. Further, in view of the findings recorded above, observations made and directions issued no order need be passed with reference to the pending application of the petitioner under section 340 Cr.P.C.

Learned District Judge has found the same set of respondents (O.P. No. 6-8) to be involved in pursuing frivolous claims in collusion with same set of persons with same set of Advocates. Gross abuse of law and process of court cannot be permitted by any person and particularly by Advocates, who are officers of court.

Considering the report of the District Judge, which is taken on record, and the facts as detailed above and also the fact that the CBI is already holding an enquiry into the allegations of grabbing properties situate in prime locations of the city of Lucknow including the properties, for which the District Judge has made observations in his report, under the directions of this Court in Writ Petition No. 9925 (M/B) of 2010, Prashant Singh Gaur versus State of U.P and others, wherein notice of judgment and decree passed in Regular Suit No. 520 of 2007 has also been taken, we

consider it expedient that the matters be enquired into by an independent agency, namely, the CBI. We, therefore, direct that the CBI shall conduct an enquiry in view of the report of the District Judge, Lucknow dated 23.11.2010 and proceed in accordance with law.

The Registrar is directed to forward a copy of this order along with the copy of the report of the District Judge dated 23.11.2010 to the Director CBI forthwith for necessary action.

The writ petition is allowed with costs, which is assessed at Rs.20,000/- to be borne by O.Ps. No. 6 to 8.

The lower court record be sent back immediately.

February 2nd, 2012 LN/-